

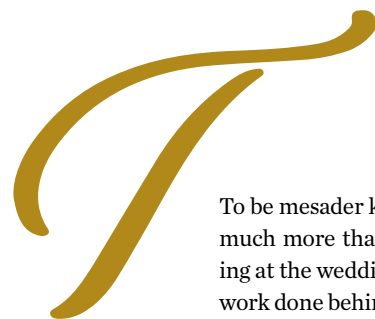
Kesubah & Witnesses

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To be mesader kiddushin includes much more than actually officiating at the wedding; there is a lot of work done behind the scenes. This is especially true when performed in the field of shlichus, where the bride and groom may not be observant. For example, the mesader kiddushin must ensure they are both Jewish and they are halachically permitted to marry; he must select kosher witnesses—not always a simple feat when many of the guests are non-observant; and he must navigate the intricacies of preparing a kesubah.

In this installment*, we will discuss some aspects of siddur kiddushin which, although not as noticeable during the wedding ceremony, are equally as important, if not more. We will also address a number of additional common wedding-related questions.

The subject of yuchsin—determining the status of the groom and bride as it relates to the wedding—will

be discussed in a separate issue, b'ezras Hashem.

An important note: I would advise any shliach preparing to officiate at a wedding to set up a meeting with the couple in advance. This opportunity can be utilized to clarify their status and explain to them the hows and whys of a Jewish marriage, as well as to discuss other issues of relevance, such as taharas hamishpachah, kashrus, and tznius (see below, p.39).

Kesubah

WHAT IS THE KESUBAH?

When a husband and wife marry, the husband assumes a number of obligations toward his wife (for example, to provide her with food, clothing, and conjugal duties).¹ The kesubah is a marriage contract that specifies these legal obligations, and, more specifically, the obligation of the husband to pay the wife a certain sum of money in the case of divorce or his death.

The reason for this last obligation is so that the husband will not divorce his wife unless there is a valid reason, knowing that doing so will entail a substantial financial loss.²

To further reinforce the woman's feeling of security in the marriage, Chazal enacted that the husband's assets in real estate (mekarke'in) are under lien (meshubad) to paying this sum.³ This was later extended to include the husband's movable property (metaltelin) as well.⁴ Additionally, the groom makes a kinyan before the kesubah is signed, to express his commitment toward these obligations.⁵

Although these obligations are specified in the kesubah document, they are binding in any case (even if no kesubah was written, if it was found to be possul, etc.).⁶

*See *Compass Magazine* vol. 20 for the first installment of this two-part series, "Officiating at a Wedding: A Step-by-Step Guide."

1 A list of these obligations can be found in *Rambam, Ishus* ch. 12, and *Shulchan Aruch, Even Ha'ezer* §69.

2 *Kesubos* 11a. See *Tosfos to Kesubos* 39b for why there is an obligation to pay this sum in the case of death as well.

This takanah remained in force despite the cherem of Rabbeinu Gershon, according to which divorce requires the wife's consent (See *Rama* 66:3 and *Chelkas Mechokek* and *Beis Shmuel* there).

3 *Kesubos* 82b.

4 *Rambam, Ishus* 16:7-8. This is actually mentioned in the text of the kesubah: "I accept upon myself the obligation of this kesubah...it can be paid from all of my possessions...both mortgageable property [i.e., real estate] and non-mortgageable [i.e., movable] property."

5 See *Rambam, Mechirah* 5:11-13.

6 *Kesubos* 51a.

WHEN SHOULD THE KESUBAH BE PREPARED?

There are various customs with regard to when the kesubah is to be prepared. For example, some prepare the kesubah immediately before the chupah, even if it takes place after nightfall. According to another custom, although the kesubah is filled out before the chupah, the kinyan is made under the chupah (after the kiddushin), after which the witnesses sign.

The Chabad custom is to prepare the kesubah during the daytime hours of the wedding day (even if the chupah will take place after nightfall), at which time a kinyan is made and the kesubah is signed. Under the chupah, where the kesubah is read publicly, the groom merely gives the kesubah to the bride.⁷ (Doing so also has the added benefit of being able to prepare the kesubah without pressure, as opposed to later at night or under the chupah, when the pressure may lead to mistakes.)

FILLING IN THE KESUBAH

Nowadays the text of most kesubos is printed in advance, and all that is left is to fill in the details that vary from one kesubah to the next.

Fill in the details with a pen, as opposed to a pencil, which can be erased. The witnesses must similarly sign their names with a pen.

If, after filling in a certain detail, empty space remains before the next word, fill it in with a straight line (—).⁸ This is mainly necessary with the names, location, and amounts.

7 See *Toras Menachem* vol. 10, p. 199, and at length in the author's book *Agurah Be'ahalcha* §54.

8 See *Shulchan Aruch, Choshen Mishpat* §45. *Mishpat Hakesubah*, Mahadura Kama, Shaar 11.

All lines should be filled in before the witnesses sign. However, if this was not done, you may fill them in afterward (see *Seder Kesubah Kehilchasah, Shevivei Eish* §16).

A FEW TIPS

- ♦ Bring an extra copy of the kesubah, in the event that a mistake is made and the kesubah must be replaced (see below, p. 34).
- ♦ If the empty space given in the kesubah is minimal, requiring that the information be written in small lettering, practice first on another piece of paper.

NOTE

The way a Sephardic kesubah is prepared may differ from what will be described below, and customs vary between the various Sephardic groups themselves (e.g., Syrian, Moroccan, Persian). A shliach who will be officiating at such a wedding should speak in advance to a rov familiar with the customs of that specific Sephardic branch.

DATE

The date written in the kesubah is the date when the kinyan will be made in front of the witnesses and the witnesses will sign (as opposed to the date of the actual wedding, or when the details of the kesubah were filled in). As explained above, according to Chabad custom this is done on the day of the wedding, during the daytime hours. It is from this point in time that the husband's assets become liable toward the kesubah.⁹

If an earlier date was written, or if the present date was written but the kinyan was delayed until after nightfall, the kesubah is invalid and must be replaced.¹⁰

The date includes the day of the week, the day of the month, the name of the month, and the year—in this order. The exact method of writing the date is

9 *Shu"t Tashbatz* 3:301. See *Shulchan Aruch, Choshen Mishpat* 43:1.

10 *Shulchan Aruch, Choshen Mishpat* 43:7.



DISCLAIMER:

Reading this article does not qualify the reader to serve as a mesader kiddushin. It is meant to assist those who have studied the necessary halachos, namely, the relevant halachos of yuchsin and kiddushin in *Even Ha'Ezer*. See *Compass Magazine* vol. 20, p. 49 for more on the prerequisites necessary to be a mesader kiddushin.

For a thorough, detailed analysis of the marriage procedure, it is recommended to purchase the author's book, *Seder Kiddushin Venissuin*, published by Kehot. The book also includes an abridged, concise guide for the mesader kiddushin (in Hebrew and in English), questionnaires for the bride and groom, the nusach of the various types of kesubos (including removable templates that can be photocopied as needed) and the words that are filled in, and more.

The book can be purchased at kehotonline.com.



Bring

an extra copy of the kesubah, in the event that a mistake is made & the kesubah must be replaced.

explained in *Shulchan Aruch, Even Ha’ezer* 126:2-7, and in the author’s sefer *Seder Kiddushin Ve’nissuin* pp. 24-26; 95-96.¹¹ If the kesubah is being signed at night, write the date of the following day without using the word אור (e.g., בשני בשבת, not באור לשני בשבת) ¹²

LOCATION

The location written in the kesubah is the place where the kinyan will be made and the witnesses will sign, even if the kesubah was prepared and/or the chupah will be held elsewhere.¹³ The name of the location should be written properly and accurately. As a rule, write the name of the city, as opposed to the neighborhood.¹⁴ In cases of doubt, a rov should be consulted. (Examples include: how to spell the city’s name in Hebrew; a suburb; an independent neighborhood with its own name; if the kinyan is being made at a location far from the city and thus does not have its own name.) Writing the incorrect location may, at times, invalidate the kesubah.

NAMES OF THE GROOM AND BRIDE

The names of the groom and bride should similarly be written properly and accurately.¹⁵ If you are in doubt as to how a certain name should be written, a rov should be consulted. (For example, when writing a non-Jewish name with Hebrew letters, the spelling may vary depending on Ashkenazi, Sephardi, and modern Hebrew pronunciation.) Writing a name incorrectly may, at times, invalidate the kesubah. The first and last time the names of the groom and bride are mentioned, their fathers’ names¹⁶ are mentioned as well. Throughout the rest of the kesubah, however, only their own names are written.¹⁷

If the groom is a Kohen or Levi, the word *Hakohen* or *Halevi* should be added. In the two places where his father’s name is mentioned, it should be added after his father’s name, and in the rest of the kesubah, it should be added after the groom’s name. Similarly, if the bride’s father is a Kohen or Levi, this should be added in the

two places where her father’s name is mentioned.¹⁸ If this is a matter of doubt, it should be omitted.¹⁹ If the groom/bride is a ger/gyores, write *ben/bas Avraham Avinu*,²⁰ even if the father is Jewish.²¹ If the mother is Jewish but not the father, write the mother’s name.²²

If the groom, bride, or their fathers have more than one Hebrew name, they should all be written.²³ Nicknames, however, should not be included.²⁴ Similarly, non-Jewish names should not be included, as long as they use their Jewish name at least on occasion (e.g., when called up to the Torah).²⁵ However, if their Jewish name is never used in everyday usage, the non-Jewish name should be used (written in Hebrew characters). Likewise, if they do not have a Jewish name, their non-Jewish name should be used. If they recently received a Jewish name (e.g., a ger/gyores or baal/baalas teshuvah), only write the new name if it has been used for at least thirty days. If the new name has not been in use for this amount of time but they specifically desire to use it, a rov should be consulted.²⁶

With regard to issues such as these, it is worth mentioning a principle given by the Rama:²⁷ “It is always better to be in doubt that perhaps a detail was omitted, than to be in doubt that perhaps it was written incorrectly.”

STATUS OF THE BRIDE

As stated above, the primary focus of the kesubah is on the sum of money the husband is obligated to pay his wife in the case of divorce or death. This sum varies based on the status of the bride at the time of the wedding. It is therefore important to determine her status, so that the correct information will be filled in. Furthermore, supplying accurate information is important in the event she wishes to marry a Kohen in the future; the mesader kiddushin will examine her previous kesubah to determine her status.

18 See Rama, *Even Ha’ezer* 129:7. *Nachalas Shivah* 12:51.
19 See Rama *ibid.* that omitting this detail does not render the get invalid bedi’eved. See also *Igros Moshe, Even Ha’ezer* 3:26.
20 *Shulchan Aruch, Even Ha’ezer* 129:20. *Levush* ad loc.
21 *Otzar Haposkim* 66:125.
22 See *Agurah Be’ahalcha* §57. I heard from a number of rabbonim that in such a case, R’ Zalman Shimon Dworkin would also add the grandfather’s name (e.g., יוסף בן רחל בת יעקב).
23 Based on *Nachalas Shivah* 12:16.
24 See the references given in *Seder Kiddushin Ve’nissuin* p. 28 fn. 24.
25 *Shu”t Binyan Tzion* §172.
26 See *Agurah Be’ahalcha* §56 that according to some poskim, the new name can be written followed by the word דמתקרי and the old name (e.g., עקב דמתקרי דושאק).
27 *Even Ha’ezer* 128:7.

The following chart lists the various details that are filled in based on the bride’s status. It is recommended to be in touch with a rov in advance to ensure that everything will be done correctly.

WHAT TO WRITE →	After the word להדא; before the word דא (twice)	After the words ויהיבנא ליכי	After the words דהנעלת ליה	After the words חתן דגן
BRIDE’S STATUS ↓				
VIRGIN	בתולתא	מהר בתוליכי כסף זוזי מאתן דחזי ליכי מדאורייתא	מבי אבוא ²⁸	במאה . . מאה . . מאתים
DIVORCEE	מתרכתא ²⁹	כסף ³⁰ מתרכותיכי זוזי מאה דחזי ליכי מדרבנן	Leave empty ³¹	בחמשים . . חמשים . . מאה
WIDOW	ארמלתא ³²	כסף ארמלותיכי זוזי מאה דחזי ליכי מדרבנן	Leave empty	בחמשים . . חמשים . . מאה
CHALUTZAH	חלוצתא	כסף חלוצותיכי זוזי מאה דחזי ליכי מדרבנן	Leave empty	בחמשים . . חמשים . . מאה
GIYORES	גיורתא	כסף כתובתיך ³³ זוזי מאה דחזי ליכי מדרבנן	Leave empty	בחמשים . . חמשים . . מאה
IF SHE ENGAGED IN INTIMATE RELATIONS WITH ANOTHER INDIVIDUAL AND/OR THE GROOM BEFORE THE WEDDING (WITHOUT MARRIAGE) ³⁴	איתתא	כסף כתובתיך זוזי מאה דחזי ליכי מדרבנן	Leave empty	בחמשים . . חמשים . . מאה
IF THE COUPLE ARE ALREADY MARRIED, BUT NOT HALACHICALLY (E.G., CIVIL, REFORM, CONSERVATIVE) ³⁵	איתתא ³⁶	כסף כתובתיך ³⁷ זוזי מאה דחזי ליכי מדרבנן ³⁸	Leave empty	בחמשים . . חמשים . . מאה

28 If her father is deceased, write נשא.
29 See *Seder Kiddushin Ve’nissuin* p. 31 for what to write if she is also a widow (here and before the word דא).
30 If the kesubah has the word מהר printed in it, leave it in and continue with etc. מתרכותיכי כסף זוזי etc., as appropriate). With the kesubah of a giyores or beulah (where כסף כתובתיך is usually written), attach the letters יכי to the word מהר (creating the word מהריכי) and continue with etc. כסף זוזי etc.
31 If the bride is bringing a dowry from her parents, write מבי אבוא. The same applies to any other woman who is not a besulah (with the exception of a giyores, who has no halachic relation to her parents).
32 See *Seder Kiddushin Ve’nissuin* p. 31 for what to write if she is also a divorcee (here and before the word דא).
33 See *Seder Kiddushin Ve’nissuin* p. 33 fn. 50.
34 However, the groom may agree to commit himself to a kesubas besulah. In such a case, write מאתן instead of מאה (and מאה instead of (חמשים), but write איתתא (and not בתולתא) and omit the word מדאורייתא. There is one exception: if the bride engaged in relations with a non-Jewish individual, she is possul to marry a Kohen and it must therefore be clear in the kesubah that she is not a besulah. (See *Shu”t Igros Moshe, Orach Chaim* 4:118.)
35 Here as well, the groom may commit himself to a kesubas besulah (see previous note).
36 *Shu”t Minchas Yitzchak* 2:111:6. *Shu”t Igros Moshe, Even Ha’ezer* 1:101. If they will take issue with this, you may write בתולתא (*Shu”t Igros Moshe ibid.*).
37 *Shu”t Minchas Yitzchak* 2:111:6. However, see *Shu”t Igros Moshe, Even Ha’ezer* 1:101, where he rules that מהר בתוליכי should be written.
38 See *Shu”t Minchas Yitzchak* 2:111:6. If they will take issue with omitting the word מדאורייתא, you may include it (*Shu”t Igros Moshe, Even Ha’ezer* 1:101).

KINYAN AND SIGNATURES

After filling in the relevant information, explain the content of the kesubah to the groom and witnesses.³⁹ In the presence of two kosher witnesses, the groom makes a *kinyan sudar*.⁴⁰ Next, fill out the word *vekanina*.⁴¹ (Some printed kesubos include the word *vekanina*, and all that’s left to do is to finish the leg of the kuf.)

NOTE

For more information on making a kinyan sudar, see the previous installment of this article (Compass Magazine vol. 20, p. 50).

The witnesses then sign, each one writing his name and his father’s name. (Some say they should write their family name as well, preceded by the word למשפחת.) After their name, they should write the word *eid*. (Some printed kesubos include this word, in which case there is no need to write it.) If the witness is a Kohen or Levi, he should add the word *Hakohen* or *Halevi* after his father’s name (e.g., אהרן הכהן עד).⁴² The names should be written clearly; scribbled signatures (as those used when signing a check) are not effective.⁴³

TIP

Have the witnesses practice first on another piece of paper to ensure they will sign correctly.

It is preferable to use witnesses who can sign their names in Hebrew. Bedi’eved, if there is no other option, they may sign their Hebrew names in English letters (e.g., “Reuven ben Yaakov eid”, or “Reuven son of Yaakov witness”).⁴⁴ This is better than you writing their names in Hebrew on a separate piece of paper and having them copy it into the kesubah, or preparing a dot-to-dot profile of their names and having them connect

39 Although in general the witnesses must read the document and understand its contents before signing (see *Alter Rebbe’s Shulchan Aruch, Choshen Mishpat, Dinei Eidus U’shtaros* 21), in common practice, the witnesses do not read the kesubah before signing it. A number of explanations have been given for this, including that since all printed kesubos share the same text, it suffices for the witnesses to see that the standard version is being used (see *Seder Kiddushin Ve’nissuin* p. 35 fn. 60).

Nevertheless, it is recommended to explain the kesubah’s contents to the witnesses before they sign, and, in particular, to inform them of the names of the groom and bride. Certainly, the groom should be familiar with the general content of the kesubah before making the kinyan.

40 If the kinyan was omitted, the kesubah is invalid. However, if the witnesses signed before the kinyan was made, the kesubah is still valid, provided the kinyan took place on the date written in the kesubah (see *Rama, Even Ha’ezer* 66:1).

41 If the word *vekanina* was filled in before the kinyan was made, the kesubah is valid (*Minchas Pittim, Even Ha’ezer* 66:1).

Conversely, if you forgot to fill in the word *vekanina*, you may do so when you remember, as long as they are asukin be’oso inyan (see *Shu’t Shevet Halevi*, 9:277. *Haoros U’biurim* 980 p. 100). In practical terms this means it can be fixed as long as the wedding is still being celebrated. If the mistake was only realized afterward, do not fix it, and the kesubah remains valid.

42 See *Shulchan Aruch, Even Ha’ezer* 154, *Seder Hagat* 66.

43 See *Shach, Choshen Mishpat* 121:13. *Nesivos* ad loc. 10.

44 See *Shulchan Aruch, Even Ha’ezer* 130:15. Do not write “ben...witness” or “son of...eid.”

the dots.⁴⁵ Similarly, someone else may not sign their names for them, as all these methods invalidate the kesubah.⁴⁶

I MADE A MISTAKE IN THE KESUBAH. WHAT SHOULD I DO?

If the mistake was found on the day of wedding, the following laws apply:

If a mistake was made that invalidates the kesubah (as will be listed below), the kesubah must be replaced. The new kesubah should be signed by the witnesses who saw the groom make a kinyan. If they are not available, new witnesses should be selected, and the groom should make another kinyan before them.⁴⁷

If replacing the kesubah is not possible (tip: bring an extra copy), certain mistakes can be fixed and certified.⁴⁸ However, a mistake in the names of the groom, bride, or their parents cannot be fixed, as well as a mistake in the date or location.⁴⁹ With such mistakes, replacing the kesubah is the only option.

FIXING AND CERTIFYING A MISTAKE IS DONE AS FOLLOWS:

1 If a letter/word was written incorrectly, whiteout the mistake and write the proper letter/word on top. If an unnecessary letter/word was written, either cross it out or whiteout it. (It may be possible to insert a missing word by writing it between the lines. However, this method cannot be used with a printed kesubah [which typically does not have space before the words והכל שריר וקיים]. If using such a kesubah, a missing word cannot be fixed, and the kesubah must be replaced.⁵⁰)

2 Have the witnesses sign the original text of the kesubah.

3 Underneath the witnesses’ signatures, specify the corrected letter/word and describe what was done to it. (For example, if you erased a letter/word with whiteout and corrected it on top, write אות/תיבה ____ היא על המחק was crossed out, write אות/תיבה ____ עבר עליה הקולמוס. If a letter/word was erased with whiteout, write אות/תיבה ____ מחוקה.)

4 Write the words ודין קיומה והכל שריר וקיים.

5 The witnesses sign once again, thus certifying the correction.

Not all mistakes must be certified. As mentioned above, only mistakes that invalidate the kesubah must be certified. Other mistakes should be fixed as well

45 *Shulchan Aruch, Choshen Mishpat* 45:4. (Although this method can be used with gittin [Ibid., *Even Ha’ezer* 130:16], that is because mishum iguna heikilu.)

46 *Beis Yosef*, end of *Even Ha’ezer* §130.

47 *Pis’chei Choshen* vol. 8, *Kuntres Be’inyanei Kesubah* par. 39-40.

48 See *Shulchan Aruch, Choshen Mishpat* 44:5.

49 *Nachalas Shivah* 3:17.

50 See *Seder Kiddushin Ve’nissuin* p. 39 fn. 78.

(in the manner described above), but there is no need to certify them. Additionally, if the whiteout was applied to a small area (making it highly unlikely for a forgery to be made there), or if the correction is unnoticeable, it does not need to be certified.

If a word extends beyond the line, it must be certified, unless that word will be repeated later in the kesubah. (To certify such a word, write אות/תיבה ____ היא מחוץ לשיטה.)

THE FOLLOWING IS A PARTIAL LIST OF

Mistakes That Invalidate the Kesubah

- ♦ If the kinyan was made after the date written in the kesubah (e.g., if it was delayed until after nightfall).
- ♦ If part of the year’s numerical value was omitted (e.g., he wrote שנת חמשת אלפים ושבע מאות but omitted ושבעים ושמונה).
- ♦ If the location was omitted or written incorrectly.
- ♦ If the bride/groom’s name was omitted, or if it was misspelled and may be mistaken for an incorrect name.
- ♦ If the grandfather’s name was used instead of the father’s.
- ♦ If the witness misspelled his own name or his father’s name and it may be mistaken for an incorrect name.
- ♦ If the witness scribbled his signature, or used roshei teivos.

THE FOLLOWING IS A PARTIAL LIST OF

Mistakes That Do Not Invalidate the Kesubah

- ♦ If the day of the week was written with a different spelling (e.g., בששי instead of בשישי).
- ♦ If the word יום/ימים was omitted when writing the day of the month.
- ♦ If יום was used instead of ימים or vice versa.
- ♦ If lashon nekeivah was used when writing the day of the month.
- ♦ If a name was misspelled but will not be mistaken for an incorrect name (e.g., יהודא instead of יהודה).
- ♦ If an improper description was used for the bride (if it will not lead to the possibility of a forbidden marriage to a Kohen).
- ♦ If the groom/bride’s father’s name was omitted.
- ♦ If the groom/bride has two names, and the infrequently-used one was omitted.
- ♦ If the witness omitted his father’s name, but

All the above is limited to when the mistake was discovered on the day of the wedding, when the witnesses who saw the kinyan are still present. If the mistake was discovered the next day or at a later point in time, when these witnesses are not available, the kesubah must be replaced with what is known as a *kesubah de’ishtakach bah ta’usa*. A rov should be consulted as to how to go about doing so.

- ♦ If a two-line width separates the end of the kesubah from the signatures.
- ♦ If the word *besula* was written about a woman who may not marry a Kohen (e.g., a divorcee, or a woman who engaged in intimate relations with a non-Jew before the wedding).
- ♦ If the amount written in the kesubah is lower than it should be (e.g., 100 for a virgin).
- ♦ Due to the complexity of these halachos, in any case where a mistake was made, it is best to consult with a rov who is proficient in this topic.

wrote the word *ed*.⁵¹

- ♦ If the witness wrote his father’s name, but omitted the word *ed*.⁵²
- ♦ If the witness’s signature extended above the word *ed* (due to its length).
- ♦ If a shortly-later date was written.
- ♦ If the word הכהן/הלווי was omitted.
- ♦ If the amount written in the kesubah is higher than it should be (e.g., 200 for a divorcee).
- ♦ If the source of the nedunya (i.e., the words following והנעלת ליה) was specified incorrectly.
- ♦ Due to the complexity of these halachos, in any case where a mistake was made, it is best to consult with a rov who is proficient in this topic.

51 *Shulchan Aruch, Even Ha’ezer* 130:11.

52 *Shulchan Aruch, Even Ha’ezer* 130:11.

Symbolism OF THE Kesubah

Although the kesubah is a legal document, there is much spiritual significance attached to it as well.

As is well known, Matan Torah was compared to a wedding, with Hashem as the “groom” and Knesses Yisroel, the “bride.” In this context, the kesubah, given by the groom to the bride, can be compared to the luchos given by Hashem to Bnei Yisroel.⁶⁷ Indeed, when the Midrash explains why Moshe broke the luchos, it gives a mashal from a kesubah.⁶⁸

The tzaddik R’ Yitzchok of Nishchiz writes an explanation he heard from R’ Levi Yitzchak of Berditchev. When a couple marries, the *yud* of the husband joins the *hei* of the wife, creating the name of Hashem. However, this only creates the first half of Hashem’s name. The second half is found in the kesubah, which consists of the word *kasav* and the letters *vav* and *hei*. Thus, by writing a kesubah, the complete name of Hashem is formed.⁶⁹

The kesubah’s symbolism is apparent in its text as well. The Gemara states that a man who does not have a wife resides without *berachah* and without Torah.⁷⁰ The first letter of the kesubah is *beis*, which stands for *berachah*, hinting that it is through marrying a woman that a man merits to experience blessings in the home. Additionally, the letter *beis* is the first letter of the Torah, indicating that marriage also brings the blessing of Torah.⁷¹

The Alter Rebbe questions the wording of the kesubah, in which the groom commits to provide sustenance for his wife. How does this consist with Chazal’s statement that sustenance is received in the merit of the woman? The Alter Rebbe explains that although the husband draws down energy from Hashem’s attribute of *chesed*, its manifestation may be limited, taking the form of spiritual kindness and not of material blessings. It is the wife, whose spiritual source is higher than that of the husband, who causes the energy to manifest itself physically as well.⁷²

67 *Tashbatz* (Katan) §465.

68 Quoted in *Rashi* to *Shemos* 34:1.

69 *Toldos Yitzchok*, end of *Parshas Chayei Sarah*. He continues that the word *pilagshim*, women married without a kesubah, consists of the two words *peleg shem*, half a name.

70 *Yevamos* 62b.

71 *Shu”t She’eris Yaakov* (Kahana), *Even Ha’ezer* 18. See also *Tashbatz* (Katan) §464.

72 *Likkutei Torah*, end of *Parshas Vezos Haberachah*.



WHAT SHOULD BE DONE IF THE KESUBAH GETS LOST?

To prevent such an issue, the bride should be told to keep the kesubah in a safe place at all times.

If the kesubah is misplaced, relations are forbidden, and some add that *yichud* is forbidden as well.⁵³ In such a case, a *rov* should be contacted immediately to replace it with what is known as a *kesubah de’irkesa*.

Regarding where the kesubah should be kept, the *Igros Moshe* writes⁵⁴ that the wife should keep it with her possessions. He continues that she may give it to her husband for safekeeping, if she trusts him that he will return it whenever she asks, even in the case of divorce. However, if she does not trust him to such an extent, she should not give it to him to keep (even if at this time she believes they will never divorce).

Practically speaking, each situation is different. Whatever the case, as *mesader kiddushin*, you should emphasize the importance of keeping the kesubah in a safe place.

53 *Shulchan Aruch, Even Ha’ezer* 66:3.

54 *Even Ha’ezer* 3:26.

Witnesses

Whenever witnesses are necessary, care must be taken to ensure that they are qualified. When meeting with the groom and bride before the wedding, it is advisable to tell them that you will be the one to select witnesses. This will help avoid the issues that may occur if they select problematic witnesses. The *mesader kiddushin* himself may serve as one of the witnesses, if necessary.

A witness may be invalid either due to kinship, or due to having committed certain types of transgressions. If one of the witnesses who signed the kesubah was *possul*, the kesubah is invalid. Likewise, if one of the witnesses who viewed the *kiddushin* was *possul*, the *kiddushin* does not take effect.⁵⁵

DISQUALIFICATION DUE TO KINSHIP

The witnesses and their wives should not be related to either the groom, the bride, or the other witness.

In general, as a preventive measure, we try to avoid using any relative as a witness, even those who are not halachically disqualified. However, when a *shliach* is being *mesader kiddushin*, he often does not have that many kosher witnesses to choose from, due to the lack of observant men present at the wedding.

It is therefore important to study the halachos of which types of relationships render a person disqualified, so that, if necessary, a kosher relative can be used. These halachos are explained in *Shulchan Aruch, Choshen Mishpat*, siman 33. In cases of doubt, a *rov* should be consulted.

55 *Shulchan Aruch, Choshen Mishpat* 36:1 and *Shach* ad loc., 6 and 8.

RELATIONSHIPS THAT DISQUALIFY SOMEONE FROM SERVING AS A WITNESS INCLUDE THE FOLLOWING:

♦ Father	biological or through marriage)
♦ Stepfather	
♦ Grandfather	♦ Nephew (whether biological or through marriage)
♦ Step-grandfather (i.e., the husband of one’s grandmother)	♦ Biological great-nephew (i.e., the grandson of one’s sibling)
♦ Great-grandfather	
♦ Son	♦ A great-uncle through marriage (i.e., the husband of one’s great-aunt) may serve as a witness, as well as the father or brother of one’s brother-in-law.
♦ Son-in-law	
♦ Grandson	
♦ Grandson-in-law (i.e., the husband of one’s granddaughter)	
♦ Great-grandson	♦ Similarly, two <i>mechutanim</i> may serve as witnesses together (if they are unrelated to the bride and groom). However, as mentioned above, <i>poskim</i> recommend selecting witnesses that have no relationship at all to any of the relevant parties, if possible.
♦ Brother	
♦ Brother-in-law	
♦ Uncle (whether biological or through marriage)	
♦ Biological great-uncle (i.e., the brother of one’s grandparent)	
♦ Cousins (whether	

DISQUALIFICATION DUE TO AVEIROS

To avoid the issue of non-qualified witnesses, wherever possible, only observant individuals should be chosen. However, here as well, many times a *shliach* does not have a wide array of potential witnesses from whom to choose and he may need to rely on someone who is not fully observant. It is therefore important to study the details of what type of transgressions render a person disqualified, as explained in *Shulchan Aruch, Choshen Mishpat*, siman 34. In cases of doubt, a *rov* should be consulted.

THIS CATEGORY INCLUDES THE FOLLOWING INDIVIDUALS:

- ♦ A non-observant person.
- ♦ Someone who wantonly transgressed an aveirah upon which there is a chiyuv malkus, kares or misas beis din (e.g., not keeping Shabbos).
- ♦ Someone who wantonly transgressed an aveirah involving money (e.g., cheating, stealing).
- ♦ Someone who wantonly transgressed an aveirah that does not carry a chiyuv malkus (e.g., speaking lashon hara) is possul me'derabanan.
- ♦ Similarly, someone who wantonly transgressed an aveirah derabanan (e.g., moving muktzah items on Shabbos) may be possul me'derabanan.

THE FOLLOWING METHODS OF TRANSGRESSION DO NOT DISQUALIFY A WITNESS:

- ♦ If he transgressed an aveirah unintentionally.
- ♦ If he did not perform certain mitzvot asei (e.g., putting on tefillin, wearing tzitzis, bentching). The reason this does not disqualify is because the transgression was passive (shev ve'al taaseh) and not active (kum va'asei).⁵⁶
- ♦ If he did an act that most people don't realize is an aveirah (e.g., tying knots on Shabbos).
- ♦ If he believed that the aveirah he did was allowed in his circumstances.

THOUGHTS OF TESHUVAH

When giving a get, even if the witnesses are of outstanding character, they are told to reflect on thoughts of teshuvah.⁵⁷ This halachah is not cited with regard to eidei kiddushin. Various reasons are given for this,⁵⁸ but, in any event, it is recommended for the witnesses on their part to do so.

⁵⁶ This is true unless he is in the category of a complete porek ol (*Nesivos – Biurim, Choshen Mishpat* 34:1. *Shu"t Rav Paalim, Orach Chaim* 2:11).

⁵⁷ Rama, *Even Ha'ezer* 154, *Seder Haget* 2.

⁵⁸ See *Shu"t Tirosh Veyitz'har* §30.

Q & A

Q. If a couple is already living together, what conditions must be met, if any, to be able to arrange a proper wedding for them?

A. If they are permitted to marry each other, and they will be living together as a married couple, they should certainly undergo a halachic wedding.

The Rebbe strongly encouraged arranging halachic weddings for couples from the Soviet Union who were civilly married, and was unhappy when the organizers wanted to delay the wedding date.⁵⁹

(See above, p. 33, for how the kesubah should be prepared in such a case.)

Q. When must a woman wait three months before remarrying?

A. Before remarrying, a divorcee or widow must wait three months (ninety-two days) from the divorce or death of her previous husband. The reason for this is so that in the event that she is pregnant, it will be clear who is the child's father. However, this requirement is necessary even if she is certainly not pregnant, for example, if she has already passed menopause.

A giyores must also wait this amount of time—even if she was previously married to the groom himself—so that the child's status will be known.⁶⁰

In the above cases, taking a pregnancy test to confirm that she is not pregnant is not sufficient.⁶¹

Q. What ramifications are there if the groom and/or bride was involved in another relationship beforehand (whether marriage or otherwise)?

A. If the groom or bride was previously married to a Jew, it must be verified that the marriage has ended, either through a proper get or death. If he or she was married to a Jew but not halachically (e.g., civil marriage, Reform, Conservative), a rov must be consulted to determine whether a get is necessary.

If her previous husband passed away without children, chalitzah may be necessary before being allowed to remarry.

If the groom or bride had previously engaged in intimate relations with another when single, he or she may marry without a problem. However, if the bride engaged in intimate relations with a non-Jew, she may not marry a Kohen. Additionally, if she engaged in intimate relations with another while married, a rov should be consulted.

(See above, p. 33, for how the kesubah should be prepared in these cases.)

Q. May I officiate at a wedding if non-kosher food will be served?

⁵⁹ *Shulchan Menachem* vol. 6, p. 160.

⁶⁰ For the details of these halachos, see *Shulchan Aruch, Even Ha'ezer* §13.

⁶¹ *Shu"t Shevet Halevi* 8:270. Rabbi Zalman Shimon Dworkin and Rabbi Yitzchok Hendel paskened this way as well.



A. Of course, a shliach should do his best to ensure that the food served at the wedding will be kosher, even offering financial assistance if necessary and feasible. If they are adamant that non-kosher food be served, he should try to arrange for the chupah (accompanied by light refreshments) to take place in one location, and the non-kosher meal to be held elsewhere.

If even these efforts are ineffective, the shliach will have no choice but to refrain from participating in the wedding.

Rabbi Hershel Shusterman AH related that the Frieddiker Rebbe instructed him to refrain from being mesader kiddushin in a place where non-kosher food will be served.⁶²

Q. May I officiate at a wedding where the couple has not committed to keep taharas hamishpachah?

A. Here as well, every effort should be made to meet with the couple before the wedding and explain to them the greatness of this important mitzvah and its tremendous effects, and to arrange for the bride to learn the necessary halachos with the shluchah, a kallah teacher, etc. At the very least, the bride should go to the mikvah before the wedding, so that their married life will begin in purity.⁶³

Q. May the groom give a ring that belongs to the bride (e.g., it is a family heirloom that she specifically desires to use)?

A. As mentioned in the previous installment (*Compass Magazine* vol. 20, p. 51), the ring must belong to the groom. If the ring belongs to the bride, lechat'chilah it should not be used, because we are concerned that the bride will not truly relin-

quish her ownership and give it to the groom as an absolute present. However, if she insists on using this specific ring, it may be used provided that she indeed transfers full ownership of the ring to the groom. The groom should then lift it three tefachim high (9.48 in. or 24 cm.) to acquire it.⁶⁴

Q. When reciting the berachos under the chupah, what should be done if the bride is not dressed modestly?

A. If at all possible, it is best to discuss the issue of modest dress with the bride in advance, and encourage her to wear a shawl or the like at least during the actual wedding ceremony.

If this is not an option, if possible, turn to the side when saying the berachos. Otherwise, close your eyes or lift the siddur before your eyes.⁶⁵

Q. Can a non-observant individual be honored to say one of the sheva berachos?

A. Yes.

Q. The only room available in the hall for yichud does not have a lock. May it be used as the yichud room?

A. Yes, as long as the door can be closed.⁶⁶

Q. May a non-Jewish father or sibling of the bride or groom participate in the chupah ceremony in any way?

A. If possible, it is best to arrange for him not to take part in the chupah ceremony.

If this is not an option, he may be honored with holding the kesubah or ring, or a similar action that is inconsequential from a halachic perspective. ❏

⁶² As heard from his son, Rabbi Yossi Shusterman, sheyichyeh.

⁶³ See *Shu"t Minchas Yitzchok* (1:10:4) where he writes that when he would serve as a mesader kiddushin, he would make sure the bride immersed beforehand. For additional sources, see *Nesivim B'sdeih Hashlichus* vol. 2, p. 179 fn. 4.

⁶⁴ See *Shu"t Chelkas Yaakov* 1:212 (new ed., *Even Ha'ezer* §81).

⁶⁵ See *Alter Rebbe's Shulchan Aruch*, 75:1.

⁶⁶ See *Shu"t Minchas Yitzchok* 4:28:7.

